

CHAPTER VIII

MAIMONIDES IN THE SYNAGOGUE

A SPACE of five hundred years divides Maimonides from Spinoza. After another hundred years the typical philosopher of the "age of enlightenment," Moses Mendelssohn (1729-86), was to refer to his hump as having been caused by his early brooding over the pages of the *Guide*, and after yet another hundred Hermann Cohen (1842-1918), the acute founder of the Neo-Kantian "Marburg school," was to begin the series of philosophical and religious writings culminating in his own *Guide*, *The Religion of Reason from the Sources of Judaism*. Within the Synagogue, or perhaps it would be truer to say within the circles of the "perplexed" always to be found in the Synagogue, the *Guide* reigned supreme.

Yet it was not always so. It won its place after a hard and bitter struggle, a struggle the main currents of which it is worth while even now trying to understand. For the issue was not a simple one, and the zealots on at least one all-important matter were not wrong; with the paradoxical result that it is to them, and not to Maimonides and his followers, that the Synagogue owed its intellectual freedom.

§

As we saw earlier, Maimonides would seem to have wished to enthrone his *Code*, supported by his own sole name, as the final authority in all religious questions, and he had laid down the principles of Judaism in thirteen articles of belief which, *as belief*, were to be obligatory on every Jew. Yet theoretical opinion, said his more measured opponents, although formulated even by a Maimonides, had never been the criterion of Judaism; nor did Judaism recognize any one person, albeit a Maimonides, as a supreme arbiter of its way of life. His bitterer critics were hardly so urbane. They declared flatly that Maimonides himself was an arch-heretic and that his own opinions were both pernicious and wrong.

In the broad it was the critics who won. Maimonides' code was adorned with commentaries and super-commentaries which argued out the sources of every one of its sentences; and the thirteen articles of belief became a mere three (and these "principles" and not articles of belief) in the final scheme proposed by the last of the classical Jewish theologians (Joseph Albo, died 1444). When an authoritative code had finally to be chosen (and one obviously had to be, and that for the very reasons indicated by Maimonides), it was not that of Maimonides at all, and Maimonides' code became only one more among the many authorities which it would seem he had wished to supersede. As for articles of belief, the whole conception of them tended to slip into the background, the old Biblical emphasis on "works" taking the shape of an insistence on unity of practice among Jews rather than on the holding of one common set of opinions.

Yet even so, Judaism after Maimonides was never the same. His impress bit deep. He had made his people think about their religion, and his books remained a rallying point for those who wished to think further. The articles of faith of the *Commentary* were turned into verse and became part of the synagogue service. The *Code*, with its logical grouping and ethical orientation, rescued religion from becoming mere "precept on precept, line on line." The *Guide* provided a permanent protest against the grossness of superstition and upheld for all time a spiritual conception of the Deity. The very points on which his opponents apparently triumphed are implicit in his own teaching that texts are to be understood in accordance with the best truth we know. On all points, whether of belief or of practice, men could say with Maimonides: "the gate of interpretation is not closed."

But it took time to see this. The first collision only raised the questions, and that in an acute form.

§

The region in which the works of Maimonides attained the most striking recognition was Provence, in the south of France. The *Code* had reached there immediately on publication and

had aroused extraordinary interest and enthusiasm; and when the *Arabic Guide* was given to the world it was only natural that a member of a famous Provençal family of translators, Samuel Ibn 'Tibbon, should approach Maimonides for permission to translate it into Hebrew. The terms in which the request was made are sufficient to attest the reverence in which the author was held, and Maimonides in his reply shows himself deeply sensible both of the compliments paid him and of the importance of the work to be undertaken. As a matter of fact, he regretted having composed the *Guide* in Arabic and, but for ill-health, would have liked now to write the Hebrew version himself.

But Provence was the home not only of those who admired the new philosophy. It contained the followers of the old paths as well; and it was from Provence that the first attacks were launched against the *Guide* and its first defence provided. The grounds of objection were its rationalizing attitude to the Biblical text and to Biblical miracles; its doctrine of prophecy; its silence on bodily resurrection and its ambiguous teaching on the subject of immortality; its rejection of simple, un-instructed piety in favour of "Greek wisdom"; and its attempt to set up intellectual belief as the criterion of Judaism. Soon the whole Jewish world was ablaze. Epistles were sent from community to community, delegates travelled from south to north and west to east, in order to fan or to assuage the flames; and there went with them, to be wielded forcibly, all the accustomed weapons of ecclesiastical controversy. Anathema and counter-anathema hurtled through the air. Even outside help was invoked, and the works of Maimonides, denounced to the Inquisition in Montpellier, were burned in the public square (1233). This act, the first of a series of attacks on Jewish spiritual life which included the first burning of the Talmud itself in 1242, seems to have helped to bring the zealots to their senses. One of their leaders, Jonah "the Saint," pupil and emissary of Solomon of Montpellier who had been the moving spirit of the attacks, undertook in repentance a pilgrimage to the tomb of the Master, and the storm died down. It was renewed some generations later, to be cut short, so far as the French Jews were concerned, by the general edict of



expulsion from France in 1306. An uneasy equilibrium was then established between the opposing sides, and it was maintained (more or less) till the nineteenth century when the whole issue was revived by S. D. Luzzatto, one of the greatest figures in modern Jewish literature and a fiery champion of the "heart" against the "head."

The details of the controversy belong to history, and reference should be made to the works of the standard historians.¹ One point in it calls, however, for special note.

As we have seen before, the *Guide* is not the only work of Maimonides which treats of theological and philosophical topics, and one of its main tasks was to offer the fuller grounds for opinions presented without discussion in the *Commentary* and the *Code*. It follows that the simple view, that it was only the *Guide* which had to be rejected, was very soon seen to be impracticable. The principal "heresies" of the *Guide* are, after all, in the *Commentary* and the *Code*, and the rejection of the *Guide* meant the rejection of *Commentary* and *Code* as well. But the *Commentary* and the *Code* could not be thrown over. They were at the very least (as was soon universally recognized) indispensable adjuncts to the study of traditional literature. The result was that in the last analysis it was *Commentary* and *Code* which saved the *Guide*.

For our purpose at the moment this point is all-important. Our interest here is not in what Maimonides made of metaphysics, but in what Maimonides made of Judaism. Having covered roughly the argument of the *Guide*, therefore, it behoves us to return to the *Commentary* and the *Code*, remembering throughout that these works were intended as standard text-books and on no shadow of ground can be called esoteric.

§

A start may be made with Maimonides' doctrine of God

¹ See in particular the volume of J. Sarachek, *Faith and Reason: The Conflict over the Rationalism of Maimonides* (Williamsport, Pa., 1935). Some of the more striking texts are printed in my *Illustrations of Post-Biblical Ethical and Religious Jewish Thought* (Mass, Jerusalem, ed. 2, 1946), caps. 4 and 7. For the Dogma controversy the classic essay of S. Schechter (*Studies in Judaism*, First Series, London, 1896) should be consulted.

and the world as given in the very first sections of the *Code*. The reader should study the whole passage carefully and should remark both the character of the propositions laid down and the use made of Biblical authority in their support. The learned will be able to trace each sentence (for which, of course, Maimonides would have claimed no originality), through the chief figures in the Judeo-Arabic movement in philosophy, to the ultimate source in Aristotle and the Neo-Platonists. The plain reader, if he have the patience to work through a frankly medieval text, is only asked to note that Maimonides is introducing him to a philosophical version of the prophetic doctrine of God while calmly ignoring all the "ragged edges."

Chapter I.¹

1. The foundation of foundations and the pillar of all wisdom is to know that there is a First Existent who brought every existing thing into being. All existing things, whether celestial, terrestrial, or belonging to an intermediate class, exist only through the reality of His Existence.

2. If it could be supposed that He did not exist, nothing else could possibly exist.

3. If, however, it were supposed that all other beings were non-existent, He alone would still exist. Their non-existence would not involve His non-existence. For all beings are in need of Him; but He, blessed be He, is not in need of them nor of any of them. His reality is therefore unlike that of any of them.

4. This is what the prophet means when he says: "But the Lord is the true God" (Jer. x, 10); that is, He alone is truly real, and nothing else has reality like His reality. The same thought the Torah expresses in the text: "there is none else besides Him" (Deut. iv, 35); that is, there is no being besides Him that is really like Him.

5. This being is the God of the universe, the Lord of all

¹ In the translation (with some modifications) of Moses Hyamson (*The Mishneh Torah*, by Maimonides, Book I), New York, 1937. There is an admirable earlier version by H. H. Bernard, *The Main Principles of the Creed and Ethics of the Jews*, Cambridge, 1832.

the earth, and He it is who controls the sphere [of the universe] with a power that is without end or limit, with a power that is never intermitted. For the sphere is always revolving; and it is impossible for it to revolve without someone making it revolve. God, blessed be He, it is, who, without hand or body, causes it to revolve.

6. To know this is an affirmative precept, as it is said: "I am the Lord thy God" (Ex. xx, 2; Deut. v, 6). And whoever permits the thought to enter his mind that there is another deity besides this God, violates a prohibition, as it is said: "thou shalt have no other gods before me" (Ex. xx, 3; Deut. v, 7), and denies the essence of religion, this doctrine being the great principle on which everything depends.

7. This God is one. He is not two nor more than two, but one. None of the things existing in the universe to which the term one is applied is like unto His unity, neither such a unit as a species which comprises many units (e.g., sub-species), nor such a unit as a physical body which consists of parts and dimensions. His unity is such that there is no other unity like it in the world.

If there were many deities, they would be physical bodies; because entities that can be enumerated and are of the same order of reality are only distinguishable from each other by the accidents that happen to physical bodies. If the Creator were a physical body, He would have bounds and limits, for it is impossible for a physical body to be without limits; and where a body is limited and finite, its energy is also limited and finite. But our God, blessed be his Name, since His power is infinite and unceasing—for the sphere [of the universe] is continually revolving—His power is not the power of a physical body, and since He is not a physical body, the accidents that happen to physical bodies do not apply to Him, so as to distinguish Him from another being. Hence, it is impossible that He can be anything but one. To know this truth is an affirmative precept, as it is said: "the Lord our God is one" (Deut. vi, 4).

8. That the Holy One, blessed be He, is not a physical body, is explicitly set forth in the Pentateuch and in the Prophets, as it is said: "Know therefore that the Lord is God in the heavens above and upon the earth beneath" (Deut. iv,

39); and a physical body is not in two places at one time. Furthermore it is said: "for ye saw no manner of similitude" (Deut. iv, 15); and again: "to whom then will ye liken me, or shall I be equal?" (Is. xl, 25). If He were a body, He would be like other bodies.

9. Since this is so, what is the meaning of the expressions found in the Pentateuch: "beneath His feet" (Ex. xxiv, 10); "written with the finger of God" (Ex. xxxi, 18); "the hand of God" (Ex. ix, 3); "the eyes of God" (Gen. xxxviii, 7); "the ears of God" (Num. xi, 1); and similar phrases? All these expressions are adapted to the mental capacity of the majority of mankind who have a clear perception of physical bodies only. The Torah speaks in the language of men. All these phrases are metaphorical like the sentence: "if I whet my glittering sword" (Deut. xxxii, 31): has God then a sword, and does He slay with a sword? The term is used allegorically and all these phrases are to be understood allegorically. That this view is correct is proved by the fact that one prophet says that he had a vision of the Holy One, blessed be He, "whose garment was white as snow" (Dan. vii, 9), another says that he saw Him "with dyed garments from Bozrah" (Is. lxiii, 1); while Moses our teacher saw Him at the Red Sea as a mighty man waging war (Ex. xv, 3) and on Sinai as one leading the congregation in prayer—all indicating that in reality He has no form or figure but these are only appearances in a prophetic vision. But God's essence as it really is the human mind does not understand and is incapable of grasping or investigating. And this is expressed in the scriptural text: "canst thou by searching find out God? canst thou find out the Almighty unto perfection?" (Job xi, 7)

10. What was it that Moses sought to comprehend when he said: "show me, I beseech Thee, Thy glory" (Ex. xxxiii, 18)? He sought to have so clear an apprehension of the truth of God's existence that his knowledge of it might be like that which one possesses of a human being whose face one has seen and whose image is imprinted on the mind and who is therefore held distinct in the mind from other men. In the same way, Moses our teacher asked that the truth of God's existence might be distinguished in his mind from other beings,

and that he might thus know the truth of God's existence as it really is. God replied that it is beyond the mental capacity of a human creature composed of body and soul to obtain clear knowledge of the truth of this. He imparted to Moses however what has been vouchsafed to no man before or since. Moses attained so much knowledge of the truth of the Divine existence that God was, in his mind, distinct from other beings in the same way as an individual, whose back is seen and whose physical form and apparel are perceived, is distinguished in the observer's mind from the physical form of other individuals. And Scripture hints this in the text: "Thou shalt see my back but my face shall not be seen" (Ex. xxxiii, 23).

11. Since it has been demonstrated that He is not a body, it is clear that none of the accidents of matter can be attributed to Him, neither conjunction nor separation, neither location nor dimension, neither ascent nor descent, neither right nor left, neither front nor rear, neither a sitting nor a standing posture. Nor does He exist in time, in the sense that He has either a beginning, end or definite number of years. Nor does He change for there is naught in Him which would cause a change in Him, nor has He death or life like that of an animal body, nor folly nor wisdom, like that of a wise man; neither sleeping nor waking; neither passion nor frivolity; neither joy nor melancholy; neither silence nor speech like that of human beings. And so the Talmudic sages said: "above, there is neither sitting nor standing, neither rigidity nor relaxation."

12. This being so, the expressions in the Pentateuch and books of the Prophets already mentioned, and others similar to these, are all of them metaphorical and rhetorical, as for example: "he that sitteth in the heavens shall laugh" (Ps. ii, 4); "they have provoked me to anger with their vanities" (Deut. xxxii, 21); "as the Lord rejoiced" (Deut. xxviii, 63) and so on. To all these phrases there applies the saying: "the Torah speaks in the language of men." So too it is said: "do they provoke Me to anger?" (Jer. vii, 19); and yet it is said "I am the Lord, I change not" (Malachi iii, 6). If God was sometimes angry and sometimes rejoiced, He would be changing. All such states are only found in physical beings, obscure and mean, dwelling in houses of clay whose foundation is in the

dust. But God, blessed be He, is infinitely blessed and exalted above all this.

Chapter II.

1. This God, honoured and revered, it is our duty to love and fear; as it is said: "thou shalt love the Lord thy God" (Deut. vi, 5); and it is further said: "Thou shalt fear the Lord thy God" (Deut. vi, 13).

2. And what is the way that will lead to the love of Him and the fear of Him? When a man contemplates His great and wondrous works and creatures and from them sees His wisdom which is incomparable and infinite, he will straightway love Him, praise Him, glorify Him, and long with an exceeding longing to know His great name; even as David said: "my soul thirsteth for God, for the living God." (Ps. xlii, 3). And when he ponders these matters, he will recoil affrighted and realize that he is a small creature, lowly and obscure, endowed with slight and slender intelligence, standing in the presence of Him who is perfect in knowledge. And so David said: "when I consider Thy heavens, the work of Thy fingers—what is man that Thou art mindful of Him?" (Ps. viii, 4-5). I shall explain accordingly in broad outline some general aspects of the works of the sovereign of the universe in order that they may serve the intelligent man as a door to the love of God, even as our sages have remarked in connection with the theme of the love of God: Observe the universe, because thus you will learn to recognize Him who spake and the world came into being.

This passage, the very opening passage of the *Code*, has been quoted in full in order to make clear the central point that, details of exposition apart, there is no difference of doctrine between *Code* and *Guide*. If anything, it might be said that the doctrine of the *Code*, being given summarily and dogmatically, is more formidable than that of the *Guide*. In this passage of the *Code*, for example, we have the bald assertion of the existence, necessity, creativity, unity, and incorporeality, of God; we have too the rejection of literalism and the substitution for it of the principle of allegorical interpretation, and with it the emphasis on the knowledge of the physical world

as the essential ground of the love of God. Whether this is really the prophetic message and whether the passion of the scientist is really the same as the Psalmist's "thirst for the living God" is another question entirely; but all the points given here as the basis of the *Code* are those which were to be the groundwork of the *Guide*. Furthermore (and here, as we saw, is a characteristic contribution of Maimonides) they are laid down as the essential foundation of Judaism: the first part of the "Book of Knowledge" which is the first book of the *Code* and from which we have just quoted is called specifically the "Foundations of the Law." Correct *opinion* is as important as correct *action*, and to hold certain beliefs is an "affirmative precept" or positive religious command.

§

We may continue our investigation of the *Code*.

After the theology and as a basis for it comes a very brief summary of physical principles; then an exposition of the "hallowing of the name of God" and of prophecy and the nature of revelation. This concludes the "Foundations." We then pass to ethics, and Maimonides offers a compendium of practical morals the content of which is drawn from Biblical and Rabbinic sources and which centers round eleven precepts, five of which are affirmative and six negative; namely: (1) to imitate the ways of God; (2) to cleave to those that know Him; (3) to love neighbours; (4) to love the stranger; (5) not to hate brothers; (6) to rebuke; (7) not to put any one to shame; (8) not to afflict the distressed; (9) not to be a tale-bearer; (10) not to avenge; (11) not to bear a grudge. Maimonides prefaces the whole by a short discussion of principle on the lines of the Aristotelian doctrine of the "mean." This is in essence only a repetition of his earlier analysis in his *Eight Chapters* (above, p. 25), and we are brought up at once against the question how is this Aristotelian doctrine compatible with the native Hebrew doctrine which is to follow immediately, the doctrine that the good is not a "mean" between "extremes" but the will of God as revealed in the definite regulation of conduct which forms the content of the rest of the *Code*.

The answer is simple, and tends to suggest that Maimonides understood Aristotle better than his critics.

The doctrine of the "mean" is wrongly interpreted in the arithmetical sense that the good lies in the exact centre between two known and identifiable "extremes" which are aberrations from it; and that for the simple reason, insisted on by Aristotle himself, that the extremes are only identifiable and known in the light of the good. When we know what the good is we can see what is an aberration from it, but we must know the good first: it is only, e.g., when we know what true courage is that we can recognize cowardice (the aberration which is an extreme one way) and foolhardiness (the aberration which is the extreme the other).

The "mean" is thus the accepted moral order. It is the norm of conduct followed by good men. Deviations from it are aberrations which are bad; in the light of the "mean" they are "extremes." But it is not the "extremes" which determine the "mean"; it is the "mean" which determines the "extremes." And so Aristotle himself can say that while from one point of view the good is a "mean," from another it is an "extreme."

Aristotle saw the norm in the standard practice of Greek society, and in the light of that norm was able to fix aberrations from it. The norm for Maimonides was the standard practice of Jewish society, and this was laid down in the traditional literature, a digest of which he was offering in the *Code*. There is no antinomy therefore, as even modern critics seem to think, in his presentation together of Greek ethics and Jewish law. He was not superimposing a Greek ideal on Judaism. He was taking the formula under which Aristotle brought the practice of the Greek ideal, and with its help brought into order the material afforded him by Jewish tradition. He thus showed a true understanding of Aristotle when, leaving generalities on the various virtues, he plunged into the concrete systematization of the details of the social norm itself.

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It is impossible here to pass these details even in the briefest review. The *Code* is now being translated fully and authorita-

tively under the auspices of the Rabinowitz Foundation for Judaica Research at Yale University, and there will soon be the opportunity to study it in English in its entirety. There is space here only to offer a few specimens of its orientation, in order to give some idea of its peculiar flavour. (It may be remarked in passing that the sources of the doctrine given, although unnamed, are wholly 'Talmudic, and that Maimonides' originality lies in the nature of the selection he makes and in the skill with which he gives the character of spontaneity to what is in effect a mosaic.)

A. *The Way of Prayer*

"Prayer without devotion is not prayer. If a man pray without devotion, he should repeat his prayer with devotion. If he finds his attention distracted and his mind disturbed he is forbidden to pray until his attention is restored. If he comes from a journey therefore and is fatigued or distraught, he is forbidden to pray until his attention is restored. The 'Talmudic sages said: 'Let him wait three days until he rest and grow calm, and after that let him pray.'

"What means 'devotion'? That a man should clear his mind of all disturbing thoughts and see himself as if he were standing before the Divine Presence. He should therefore sit a while before praying in order to devote his mind, and after that pray in quiet and supplication. Nor should he make his prayer as one who carries a burden and throws it off his back and goes away; he should therefore sit a while after praying and only then go his way." (*Laws of Prayer* iv, 15-16.)

B. *The sin of Asceticism*

"Possibly a person may say: 'since envy, cupidity and ambition are evil qualities and lead to a man's ruin, I shall avoid them to the uttermost and seek their contraries.' A person following this principle will not eat meat, nor drink wine, nor marry nor dwell in a decent home, nor wear comely apparel, but will clothe himself in sackcloth and coarse wool like the idolators' priests. This too is the wrong way, not to be followed. Whoever persists in such a course is termed a

sinner. Of the Nazirite it is said: 'he [the priest] shall make atonement for him for the sin that he committed against the soul' (Num. vi, 11 [Heb.]). On this text the Sages comment: 'if the Nazirite who only abstained from wine stands in need of atonement, how much more so does one who deprives himself of all legitimate enjoyments.' The Sages accordingly enjoined us that we should only refrain from that which the *Torah* has expressly withdrawn from our use. No one should, by vows and oaths, inhibit to himself the use of things permitted. 'Do not the prohibitions of the *Torah* suffice thee,' say our sages, 'that thou addest others for thyself?' In this condemnation are included those who make a practice of fasting; they too are not walking in the right way; our wise men prohibited self-mortification by fasting. Concerning this and similar excesses Solomon exhorts us: 'be not over-righteous, nor excessively wise; wherefore shouldst thou be desolate?' " (*Deoth* iii, trans. Hyamson)

C. *The Blowing of the Ram's Horn on the New Year*

"Although the sounding of the Shofar [Ram's horn] on the New Year is a decree of Holy Writ [and so to be obeyed without question], still it has a deep meaning, as if to say: 'Awake, awake, O sleepers, from your sleep. O slumberers, arouse ye from your slumbers, and examine your deeds; return in repentance, and remember your Creator. Those of you who forget the truth in the follies of the times and go astray the whole year in vanity and emptiness which neither profit nor save, look to your souls; improve your ways and works. Abandon, everyone of you, his evil course and the thought that is not good.' " (*Repentance* iii, 4, trans. Hyamson)

D. *Repentance*

"Great is repentance for it brings men to the Divine Presence, as it is said: 'return, O Israel, unto the Lord thy God' (Hos. xiv, 2); again: 'and ye have not returned unto Me, saith the Lord' (Amos iv, 6); further: 'if thou return, O Israel, to Me shalt thou return' (Jer. iv, 1), which means 'if thou returnest in repentance, thou wilt cleave to Me.' Repentance

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brings near those who are far away. But yesterday this person was odious before God, abhorred, estranged, an abomination. To-day he is beloved, desirable, near to God, a friend. So you find that the same expression with which God thrusts sinners away from Him, He employs to bring the penitent near to Him, whether they are individuals or communities; as it is said: 'and instead of that which was said unto them, Ye are not my people, it shall be said unto them, Ye are children of the living God' (Hos. ii, 1). Of Jeconiah, while he was wicked, it was said: 'write ye this man childless, a man that shall not prosper in his days' (Jer. xxii, 30); 'though Coniah, the son of Jehoiakim, king of Judah, were a signet upon my right hand, yet I would pluck thee hence' (Jer. xxii, 24). But after he had in his exile repented, it is said of his son, Zerubbabel: 'in that day, said the Lord of Hosts, will I take thee, O Zerubbabel son of Shealtiel, my servant, and will make thee as a signet, saith the Lord of hosts' (Haggai ii, 23)." (*Repentance* vii, 6, trans. Hyamson)

E. *The Moral Responsibility of the Individual*

"Every one, throughout the year, should regard himself as if he were half innocent and half guilty; and should regard the whole of mankind as half innocent and half guilty. If then he commits one more sin, he presses down the scale of guilt against himself and the whole world and causes its destruction. If he fulfills one commandment, he turns the scale of merit in his favour and in that of the whole world, and brings salvation and deliverance to all his fellow-creatures and to himself." (*Repentance* iii, 4, trans. Hyamson)

F. "The Sign on the Doorpost" (Deut. vi, 9)

"A man should attend to this very carefully as it is a duty incumbent on everyone always, and every time that he goes in or out he should touch the place of the name of God and remember his love and awaken from his slumber and his distractions and bethink himself that there is nothing permanent but the knowledge of the Rock of the Universe; and thus he returns to soundness of mind and walks in the way of righteousness." (*Mezuzah* vi, 14)

G. Charity

"We must observe the commandment to give charity* with greater care than any other positive precept. For charity* is the sign of the righteous* man, the seed of Abraham our father, of whom it is written: 'for I have known him to the end that he may command his children to do justice.*' The seat of Israel is only established, and true religion only stands, on charity,* as it is written: 'in righteousness* shalt thou be established.' And Israel is redeemed only by the giving of charity,* as it is written: 'Zion shall be redeemed with judgment and they that return of her with righteousness.*'

"No man ever became poor through giving charity,* and no evil or harm was ever caused through the giving of charity,* as it is written: 'And the work of righteousness* shall be peace, and the effect of righteousness,* quietness and confidence for ever.' Whoever has mercy will find mercy as it is written: 'and show thee mercy and have compassion upon thee and multiply thee.' And if a man be cruel and not merciful, one may suspect his ancestry, for cruelty goes with idolatry, as it is written: 'they are cruel and have no mercy'; whereas Israel and those who join themselves to him are as brothers, as it is written: 'Ye are the children of the Lord your God,' and if a brother will not have mercy, who will?' (*Gifts to the Poor* x, 1-2)

H. The Service of God

"There are nine kinds of oil and they are all allowed for offerings. But if they are all allowed, why were they enumerated? In order that a man should know clearly which is the very best and which is the less and which the least good, and if he incline to profit by using the inferior kind, he should bend his evil inclination and make broad his hand and bring his offering from the finest, from the very best in the kind from which he brings. . . .

"And the same holds of all things which are for the worship of God who is good; they should all be of the finest and best.

* Charity in Hebrew = *tzedakah*, which = also righteousness or justice. In the passage quoted all the words asterisked are of this root.

If a man build a house for prayer, he should build it finer than the house in which he dwells; if he feed the hungry, he should feed him from the best and daintiest on his table; if he clothe the naked, he should clothe him from the best of his garments." (*Forbidden Things of the Altar* vii, 8-11)

It is interesting to observe regarding this last passage that the commentators who scrutinized every line of traditional literature in order to find a source for the smallest remark of Maimonides, could find no source for this, and the principal commentator notes: "These are the words of the Master, and worthy they are of him!"

§

The *Code* is a code of "commandments"—"thus thou shalt do," "thus thou shalt not do"; and in this of course it continues the Biblical tradition and expounds the laws of the Pentateuch. But the question may be asked: why commandments at all; what are their sanctions, and why should we follow them? And if the answer be given: because by following them we are rewarded, either in this world or the next, we seem to be in the squalors of a moral commercialism, preaching honesty only on the ground that it pays.

Such a gross utilitarianism, which seems at first sight to be the teaching of Holy Writ itself, is dismissed by Maimonides already in the *Commentary*. His point is ingenious. The rewards and punishments of Scripture are *aids* to moral action, not its end:

"As regards the promises and threats of the Bible, their meaning is this: 'If you obey these precepts, I shall help you to a further obedience of them and perfection in the performance of them; and I shall remove all hindrances from you.' For it is impossible for man to do the service of God when sick or hungry or thirsty or in trouble, and this is why the *Torah* promises the removal of all these disabilities and gives man also the promise of health and quietude until such a time as he shall have attained perfection of knowledge and be worthy of the life of the world to come. The final aim of the *Torah*

is not that the earth should be fertile and that people should live long and their bodies be healthy. It simply helps us to the performance of its precepts by holding out the promise of all these things. Similarly, if men transgress, their punishment will be that all these hindrances will come into being, rendering them powerless to do righteousness. . . . This too is the meaning of the Rabbinic saying: 'the reward of a precept is a precept, and the reward of a transgression is a transgression'."

§

The section from which the last excerpt has been taken is the chapter on theology adverted to above (p. 25). This chapter, first edited in the original and translated into Latin nearly three hundred years ago (in 1655) by the Oxford Orientalist Edward Pococke, is available to the English reader in a translation by J. Abelson published in the *Jewish Quarterly Review* for October 1906. As a part of the *Commentary on the Mishnah*, it is the work of a young man, yet it contains already all the Maimonidean novelties—the educational approach; the sublimation of popular mythology; the insistence on the necessity of allegorization; the purely spiritual conception of the "world to come" and its complete distinction from the terrestrial Messianic age. We may quote a few isolated passages, with the suggestion that the chapter be read and studied in its entirety.

A. From "utilitarian" to "ideal" morality

"Understand the following simile.

"Figure to yourself a child young in years brought to a teacher to be instructed by him in the *Torah*. This is the greatest good he could acquire in respect of the attainment of perfection. But the child, on account of his tender years and intellectual immaturity does not grasp the measure of that benefit, or the extent to which it leads him towards the attainment of perfection. The teacher, who is nearer perfection than the pupil, must therefore necessarily stimulate him to learning by means of things in which he delights by reason

of his youth. Thus he says to him: 'read, and I shall give you nuts or figs, or a bit of sugar.' The child yields to this. He learns diligently, not indeed for the sake of the knowledge itself, as he does not know the importance of it, but merely to obtain that particular dainty, the eating of that dainty being more relished by him than study, and regarded as an unquestionably greater boon. And consequently he considers learning as a labour and a weariness to which he gives himself up in order by its means to gain his desired object, which consists of a nut or a piece of sugar."

The parable continues with an enumeration of other types of reward, including money and honour. But all these are *extraneous*. There is no real "reward" for good actions. Morality (as we say) is "its own reward."

"The good man should not say: 'If I perform these virtues and refrain from these vices which God forbade, what reward shall I receive?' For this would resemble the case of the lad who says: 'If I study, what present will be given me?' . . . The Sages warned us against this making the attainment of some worldly object the end of man's service to God and his obedience to His precepts . . . : 'Be not like servants who minister to their master upon the condition of receiving a reward; but be like servants who minister to their master without the condition of receiving a reward.' They meant to tell us by this that a man should believe in truth for truth's sake. And this is the sense they wished to convey by their expression 'serving from motives of love,' and by their comment on the phrase 'that delighteth in His commandments' (R. Eliezer said: 'that delighteth in His *commandments*' and not 'in the *reward for performance of* His commandments.') . . . And we possess a stronger proof still in their remark: 'Peradventure thou mayest say, Verily I shall learn the *Torah* in order that I may become rich or that I may be called Rabbi, or that I may receive a recompense in the future world. Therefore does Holy Writ say 'to love the Lord thy God.' Let everything that thou doest be done out of pure love for God.' Whatever thou doest, do only from love."

Maimonides reverts now to his parable. We cannot start with the ideal. Men have to be trained gradually in the right direction. So, like the teacher in the parable, the Bible promises reward for right action, in the hope that the habit of right action being once inculcated (howbeit through the expectation of reward), its essential rightness would be recognized and be followed for its own sake.

"In order that the common people might be established in their convictions, the Sages permitted them to perform meritorious actions with the hope of reward, and to avoid the doing of evil out of fear of punishment. They encourage them to these conceptions and their opinions become firmly rooted, until eventually the intelligent among them come to comprehend and know what truth is and what is the most perfect mode of conduct. It is exactly the way in which we deal with the lad in his studies, as we have explained in our foregoing simile. The people at large are not one jot the worse off through their performance of the precepts of the *Torah* by reason of their fear of punishment and expectation of reward; for they are in a state of imperfection. On the contrary, they are by this means drawn to cultivate the necessary habits and training for acting in loyalty to the *Torah*. They bring themselves over to an understanding of truth, and become 'servers out of pure love.' And this is what the Sages meant by their remark: 'Man should ever engage himself in the *Torah* even though it be not for its sake, since from doing it *not* for its sake he will come to do it for its sake.' "

B. *The Messiah and the Messianic Age*

[The Messiah is a terrestrial king who founds, or rather re-founds, a dynasty, and he inaugurates a period in which, owing to economic ease, the spiritual life will be made possible for all.]

"The days of the Messiah will be the time when the kingdom will return to Israel, who will return to the Holy Land. The king who will then reign will have Zion as the capital of his realm. His name will be great and fill the earth

to its uttermost bounds. So far as existing things are concerned they will be exactly the same as now, except that Israel will possess the reins of power. There will be strong and weak just as now. But the gaining of a livelihood will be so very easy that men will do the lightest possible labour and reap great benefit. . . . Knowledge will increase, as it is said: 'for the earth shall be full of the knowledge of God.' Discords and war will cease, as it is said: 'nation shall no more lift up sword against nation.' Great perfection will appertain to him who lives in those days, and he will be elevated through it to 'the life of the world to come.'

"But the Messiah will die, and his son and son's son will reign in his stead. His kingdom will endure a very long time and the lives of men will be long also, because longevity is a consequence of the removal of sorrow and care. . . . The days of the Messiah are not ardently longed for on account of the plentiful vegetation and the riches which they will bring in their train, nor in order that we may ride on horses, nor that we may drink to the accompaniment of various kinds of musical instruments, as is thought by those people who are confused in their ideas on such things. No! the prophets and saints longed for, and ardently desired, the days of the Messiah because in them the virtuous will come together, and there will be much goodness and knowledge, and the King will be just and his wisdom great, and he will be near to his Creator, as it is said (Psalm ii, 7). 'The Lord said unto me, thou art my son; this day have I begotten thee.' "

C. The Life of the Soul

[The Messianic age means then opportunity to develop the spiritual life which Maimonides feels himself constrained to describe. But like everybody else who has tried to do this he finds it indescribable. He explains why; but at the same time gives some positive hints, much after the manner of Aristotle and the intellectual mystics.]

"Know that just as a blind man can form no idea of colours nor a deaf man comprehend sounds, so bodies cannot comprehend the delights of the soul. And even as fish do not

know the element fire because they exist ever in its opposite, so are the delights of the world of spirit unknown to this world of flesh. Indeed we have no pleasure in any way except what is bodily. Anything else is non-existent for us: we do not discern it, neither do we grasp it at first thought, but only after deep contemplation.

"And truly this must necessarily be the case. For we live in a material world, and the only pleasure we can comprehend must be material. But the delights of the spirit are everlasting and uninterrupted, and there is no resemblance in any possible way between spiritual and bodily enjoyments. We are not sanctioned either by the *Torah* or by the divine philosophers to assert that the angels, the stars, and the spheres enjoy no delights. In truth they have exceeding great delight in respect of what they comprehend of the Creator (glorified be he!) This to them is an everlasting felicity without a break. They have no bodily pleasures, neither do they comprehend them, because they have no senses like ours enabling them to have our sense experiences.

"And so will it be with us too when after death the worthy from among us will reach that exalted stage."

D. *The World to Come*

[The spiritual life, although attainable in part in this world, is only fully realized in the world of spirit. It is a mistake however to think that everything is material even in this material world. Even now and here men strive for the spiritual, as is shown by the common psychological fact that they will ruin themselves materially in order to satisfy non-material ends and desires. Maimonides, following Aristotle, commences with this fact, and on it builds some remarkable conclusions. Incidentally, he claims no originality for them. They are, he says, the accepted teachings of the philosophers. He only shows that in them the philosophers are in accord with the Rabbis and indeed with Holy Writ itself.]

"For we find in the case of the majority of men that they all burden their souls and bodies with the greatest possible labour and fatigue in order to attain distinction or a great

position in men's esteem. This pleasure is not that of eating or drinking. Similarly, many a man prefers the obtaining of revenge over his enemies to many of the pleasures of the body. And many a man, again, shuns the greatest among all physical delights out of fear that it should bring him shame and the reproach of men, or because he seeks a good reputation.

"If such is our condition in this world of matter, how much more will it be our case in the world of the spirit, that is, the 'world to come,' where our souls will attain to a knowledge of the Creator as do the higher bodies, or more. This pleasure cannot be divided into parts. It cannot be described, neither can anything be found to compare with it. As the prophet exclaimed, when admiring its great glories (Ps. xxxi, 19): 'How great is thy goodness which thou has laid up for them that fear thee, which thou hast wrought for them that trust in thee before the children of men.' And in a similar sense the Sages remarked: 'In the world to come there will be no eating and no drinking, no washing and no anointing and no marriage; but only the righteous sitting, with crowns on their heads, enjoying the splendour of the Divine Presence' . . . By their remark: 'enjoying the splendour of the Divine Presence' is meant that those souls will reap bliss in what they comprehend of the Creator, just as the Holy Chayoth and the other ranks of angels enjoy felicity in what they understand of His existence.

"And so the felicity and the final goal consist in reaching to this exalted company and attaining to this high pitch. The continuation of the soul, as we have stated, is endless, like the continuation of the Creator (praised be He!) who is the cause of its continuation in that it comprehends Him, as is explained in elementary philosophy. This is the great bliss with which no bliss is comparable and to which no pleasure can be likened. For how can the enduring and infinite be likened to a thing which has a break and an end? This is the meaning of the scriptural phrase: (Deut. xxii, 7); 'in order that it may be well with thee, and that thou mayest prolong thy days'; for which we possess the traditional interpretation: 'in order that it may be well with thee *in the world which is all good*; and that thou mayest prolong thy days *in the world which is unending.*' "

§

And so even the earliest of the major works of Maimonides contains the theory of intellectual immortality with which we saw the *Guide* concludes. And so too does the *Code*, and with that (*Repentance* cap. viii, x) we may fittingly conclude Maimonides' account of Jewish theology. In it we find again the same central motives: the "spiritual life," "knowledge," "fear," "love," and often in the same words, and with the same Biblical and Talmidical quotations as before. But it is worth following the complete exposition in its full and systematic form, since in its quiet serenity and sureness of conviction it would seem to touch the sublime.

viii, 1. *Immortality*¹. "The good reserved for the righteous is life in the world to come, a life which is immortal, a good without evil. Thus is it written in the Torah: 'that it may be well with thee and that thou mayest prolong thy days' (Deut. xxii, 7); the traditional interpretation of which is as follows: 'that it may be well with thee,' in a world which is altogether good; 'that thou mayest prolong thy days,' in a world which is unending, that is, the world to come. The reward of the righteous is that they will attain this bliss and abide in this state of happiness; the punishment of the wicked is that they will not attain this life but will be cut off and die. He who does not attain this life will be dead, in the sense that he will never live again but will be cut off in his wickedness and perish like the brute beast. This is the penalty of excision referred to in the Torah, as it is written: 'that soul shall utterly be cut off, his iniquity shall be upon him' (Num. xv, 31), which has been traditionally interpreted as follows: 'cut off,' in this world; 'utterly cut off,' in the world to come. This means that that soul, after its separation from the body at the close of its existence on earth, will not attain life in the world to come but will be cut off from that life also.

2. *The life to come purely spiritual*. "In the world to come there is nothing corporeal and no material substance; there are

¹ Paragraph headings from the present writer; translation from Hyamson's edition (above, p. 99).

only souls of the righteous without bodies, like the ministering angels. And since in that world there are no bodies, there is neither eating nor drinking, nor aught that human beings need on earth. None of the conditions occur there which are incidental to physical bodies in this world, such as sitting, standing, sleep, death, grief and merriment. So the ancient sages said: 'In the life hereafter there is no eating, no drinking, and no marriage, but the righteous sit with their crowns on their heads and enjoy the radiance of the Divine Presence.' This passage clearly indicates that as there is no eating or drinking there, there is no physical body hereafter. The phrase 'the righteous sit' is allegorical and means that the souls of the righteous exist there without labour or fatigue. The phrase 'their crowns on their heads' refers to the knowledge they have acquired and by virtue of which they attained life in the world to come. This is their 'crown' in the sense used by Solomon in the verse: 'with the crown wherewith his mother hath crowned him' (Song of Songs iii, 11). And just as in the text: 'everlasting joy shall be upon their heads' (Isaiah xxxv, 10), joy is not to be understood as a material substance that actually rests on the head, so the 'crown' of which the sages here speak is not to be taken literally but refers to knowledge. And what is the meaning of the Sages' statement: 'they enjoy the radiance of the Divine Presence'? It means that the righteous attain to a knowledge and realization of the truth concerning God to which they had not attained while they were in the murky and lowly body.

3. *The soul immortal through knowledge.* "The soul, whenever mentioned in this connection, is not the vital element requisite for bodily existence, but that form of soul which is identical with the intelligence which apprehends the Creator as far as it is able, and apprehends other abstract concepts and other things. It is the psychic form which we expounded in the fourth chapter of the 'Foundations of the Law.' It is this which, in this connection, is called Soul. That life, as it is immortal (death being only incidental to the body which does not exist in the hereafter) is called 'the bond of life,' as it is said: 'but the soul of my lord shall be bound in the bond of life' (I Sam. xxv, 29). And this is a recompense than which

there is none higher, a bliss beyond which there is nothing more blissful. And for this all the prophets yearned.

x, 1. "*Virtutis praemium ipsa virtus.*" "Let not a man say: 'I shall observe the precepts of the Torah and occupy myself with its wisdom in order that I may obtain all the blessings written in the Torah, or attain life in the world to come; I shall abstain from transgressions against which the Torah warns, so that I may be saved from the curses written in the Torah, or that I may not be cut off from life in the world to come.' It is not right to serve God after this fashion, for whoever does so serves Him out of fear. This is not the standard set by the prophets and sages. Only those serve God in this way who are illiterate or women and children, whom one trains to serve out of fear till their knowledge shall have increased until they serve out of love.

2. *Good an intrinsic value.* "Whoever serves God out of love occupies himself with the study of the Law and the fulfilment of the commandments and walks in the paths of wisdom, impelled by no external motive whatsoever, moved neither by fear of calamity nor by the desire to obtain material benefits; such a man does what is truly right because it is truly right, and ultimately happiness comes to him as a result of his conduct. This standard is indeed a very high one; not every sage attained to it. It was the standard of the patriarch Abraham whom God called His 'lover' (Isaiah xli, 8, Heb.) because he served only out of love. It is the standard which God, through Moses, bids us achieve, as it is said: 'and thou shalt love the Lord thy God' (Deut. vi, 5). When one loves God with the right love, he will straightway observe all the commandments out of love.

3. *The love of God.* "What is the love of God that is befitting? It is to love God with a great and exceeding love, so strong that one's soul shall be knit up with the love of God, and one should be continually enraptured by it, like a love-sick individual, whose mind is at no time free from his passion for a particular woman, the thought of her filling his heart at all times, when sitting down or rising up, when he is eating or drinking. Even intenser should be the love of God in the

hearts of those who love Him. And this love should continually possess them, even as He commanded us in the phrase: 'with all thy heart and with all thy soul' (Deut. vi, 5). This Solomon expressed allegorically in the sentence, 'for I am sick with love' (Song of Songs ii, 5). The entire Song of Songs is indeed an allegory descriptive of this love.

4. *Service in love.* "The ancient sages said: Peradventure you will say 'I shall study *Torah* in order that I may become rich, that I may be called Rabbi, that I may receive a reward in the world to come.' It is therefore said: 'to love the Lord'—whatever you do, do it out of love only. The text: 'happy is the man that feareth the Lord, that delighteth greatly in His commandments' (Ps. cxii, 1) has been thus explained by the sages—'in His *commandments*, not in the *reward* for His commandments.' So too, the greatest sages were wont specifically to exhort those among their disciples who were understanding and intelligent: 'Be not like servants who minister to their master upon the condition of receiving a reward.' . . . It is right to serve him only because he is the master; that is, serve him out of love.

5. *Study for its own sake.* "Whoever engages in the study of the *Torah* in order to receive a reward, or avoid calamities, is not studying the *Torah* for its own sake. Whoever occupies himself with the *Torah*, neither out of fear nor for the sake of recompense, but solely out of love for the Lord of the whole earth who enjoined us to do so, is occupied with the *Torah* for its own sake. The sages however said: 'One should always engage in the study of the *Torah* even if not for its own sake; for he who begins thus will end by studying it for its own sake.' Hence, when instructing the young, women or the illiterate generally, we teach them to serve God out of fear or for the sake of reward, till their knowledge increases and they have attained a large measure of wisdom. Then we reveal to them this mystic truth, little by little, and train them by easy stages till they have grasped and comprehended it, and serve God out of love.

6. *Love and knowledge.* "It is known and certain that the love of God does not become closely knit in a man's heart till he is continuously and thoroughly possessed by it and gives

up everything else in the world for it; as God commanded us: 'with all thy heart and with all thy soul' (Deut. vi, 5). We love God only with the knowledge with which we know Him, and as is the measure of the knowledge, so is the measure of the love: if little, little; if much, much. A person ought therefore to devote himself to the understanding and comprehension of those sciences and studies which will inform him concerning his Master, as far as it lies in human faculties to understand and comprehend."

"We love God only with the knowledge with which we know him, and according to the measure of the knowledge is the measure of the love"—herein lies the recurring theme of the Maimonidean theology whether in *Commentary*, *Code* or *Guide*; and the motto of the whole school became the words of the charge of David to Solomon his son (I Chron. xxviii, 9): "*Know* thou the God of thy father." The position was saved from an arid intellectualism by its connection with an historic religion; and for Maimonides at least it must be remembered that *Commentary*, *Code* and *Guide* go together and that the "Foundations of the Law" mean nothing without the superstructure of the Law itself. But be that as it may, the ideal is a memorable one and worthy of the attention of posterity. It may be mistaken. It may be utopian. It is certainly not ignoble.